

25STCV38108 25STCV38108

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-30

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C507%2C07%2F30%2F2026

Source SHA-256: 05f8c1a6590377c2000f9fee2007f430fc094b4c404a469fd4ff877d43d44f12

Case Number: 25STCV38108 Hearing Date: July 30, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 30,

2026 TRIAL DATE: 03/14/2028

CASE: Kimi Kim v. Taurino Aguilar, et al.

CASE NO.: 25STCV38108

MOTION TO WAIVE JURY TRIAL AND HOLD
BENCH TRIAL

MOVING PARTIES: Plaintiff

Kimi Kim

RESPONDING PARTY: None

CASE HISTORY:

.

12/30/25:

Complaint filed.

TENTATIVE RULING:

Plaintiff's Motion to Waive Jury Trial and Hold Bench Trial
is DENIED.

Moving Party to
give notice.

BACKGROUND

This is a landlord tenant action. Plaintiff
alleges that Defendants failed to pay rent, that Defendant Velzquez assaulted
Plaintiff, and that Defendants failed to vacate the rental unit.

Plaintiff moves to waive the jury
trial and hold a bench trial.

DISCUSSION:

The right to a trial by jury
as declared by Section 16 of Article I of the California Constitution
"shall be preserved to the parties inviolate. In civil cases, a jury
may only be waived pursuant to subdivision (f)." (Code
Civ. Proc., § 631, subd. (a).) Section 631, subdivision (f) in turn
enumerates six means by which a party may waive its right to a jury trial,
the fifth of which is "[b]y failing to pay the fee described in
subdivision (b), unless another party on the same side of the case has paid that
fee." Subdivision (b) requires at least one party "demanding a
jury trial on each side of a case" to pay a nonrefundable \$150 fee "on or
before" the date scheduled for the initial case management
conference, with limited exceptions.

A court may, in its
discretion, nevertheless allow a jury trial even if
a party has waived its right to one. (Code Civ. Proc.,
§ 631, subd. (g).) "When there is doubt about whether to
grant relief from a jury trial waiver, the court must resolve that doubt in
favor of the party seeking a jury trial." (Mackovska v. Viewcrest Road
Properties, LLC (2019) 40 Cal.App.5th 1, 10 (Machovska).) The
"crucial question" in granting relief is "whether the opposing party will
suffer any prejudice if the court grants relief." (Id.)

Here,

Defendants have demanded a jury trial and have had their request to waive jury fees granted. Plaintiff argues that she has decided to go with a bench trial instead of a jury trial as it will be less stressful, and lower costs, among other things. However, Defendants have a right to a jury trial, which have demanded, and had the jury fees waived. Plaintiff does not argue that Defendants agreed to a bench trial, or that they waived a jury trial by one of the six enumerated means under Code of Civil Procedure Section 631(f). As such, the motion is denied.

CONCLUSION:

Accordingly, Plaintiff's
Motion to Waive Jury Trial and Hold Bench Trial is DENIED.

Moving Party to
give notice.

IT IS SO ORDERED.

Dated: July 30, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.